

Contempt application

(other than an application under Part 8) CPR 81.3 and 81.4

Name of court

Claim no.

Claimant's name (including ref.)

Defendant's name (including ref.)

Date

Day

Month

Year

1. What is your name or, if you are a legal representative, the name of your firm?

2. Are you a

☐ Claimant

☐ Legal representative of the claimant

3. Who should be served with this application?

First name(s)

Last name

4. Please give the service address of any party named in question 3

Building and street

Second line of address

Town or city

County (optional)

Postcode

--	--	--	--	--	--	--	--

The written evidence of the claimant in support of this application, in the form of an affidavit or affirmation, is attached to this application

If permission is required to make this application, the application for permission (headed 'Application for permission') must be included in this application

To the defendant

If upon determination of this application you are held to be in contempt of court you may be imprisoned or fined, or your assets may be seized

Your rights

You have the right to be legally represented in the contempt proceedings.

You are entitled to a reasonable opportunity to obtain legal representation and to apply for legal aid which may be available without any means test.

You may be entitled to the services of an interpreter.

You are entitled to a reasonable time to prepare for the hearing of the contempt application against you.

You are entitled but not obliged to give written and oral evidence in your defence.

You have the right to remain silent and may not be compelled to answer any question the answer to which may incriminate you.

If you do not attend the hearing, the court may proceed in your absence. Whether or not you attend, the court will only find you in contempt if satisfied beyond reasonable doubt of the facts constituting contempt and that they do constitute contempt.

If the court is satisfied that you have committed a contempt, the court may punish you by a fine, imprisonment, confiscation of assets or other punishment permitted under the law.

If you admit the contempt and wish to apologise to the court, that is likely to reduce the seriousness of any punishment by the court.

The court's findings will be provided in writing as soon as practicable after the hearing.

The court will sit in public, unless and to the extent that the court orders otherwise. Its findings will be made public.

The following information is required to be included in the application pursuant to rule 81.4(2) of the Civil Procedure Rules 1998.

5. Nature of the contempt (for example, breach of an order or undertaking or contempt in the face of the court)

6. Is the application based on breach of an order?

- ☐ Yes. **Go to question 7**
- ☐ No. **Go to question 10**

7. Date and terms of the order allegedly breached or disobeyed ('the order'). (If there is more than one such order, set out the date and terms of each order.)

8. Date of personal service of the order

Day

Month

Year

If the order was not personally served, state the date and terms of any order dispensing with personal service of the order.

9. Did the order include a penal notice?

☐ Yes

☐ No

10. Date and the terms of any undertaking allegedly breached ('the undertaking'). (If there is more than one such undertaking set out the date and terms of each undertaking.)

- 11.** Does the claimant, believe that the person who gave the undertaking understood its terms and the consequences of failure to comply with it?

☐ Yes

☐ No

- 12.** Summary of facts alleged to constitute the contempt (set these out very briefly, in chronological order, in numbered points)

Statement of truth

I understand that proceedings for contempt of court may be brought against anyone who makes, or causes to be made, a false statement in a document verified by a statement of truth without an honest belief in its truth.

☐ **I believe** that the facts stated in this contempt application are true.

☐ **The claimant believes** that the facts stated in this contempt application are true.

Signature for the statement of truth

Nadia Zahmoul

☐ Claimant

☐ Litigation friend

☐ Claimant's legal representative

Date

Day

Month

Year

Full name

Name of claimant's legal representative's firm

Position or office held (if signing on behalf of a company)

Signature for the Contempt application

Nadia Zahmoul

- ☐ Claimant
- ☐ Litigation friend
- ☐ Claimant's legal representative

Date

Day

Month

Year

Full name

Name of claimant's legal representative's firm

Position or office held (if signing on behalf of a company)

Claimant's address to which documents about this application should be sent

Building and street

Second line of address

Town or city

County (optional)

Postcode

--	--	--	--	--	--	--	--

Phone number

Email address

Fax number

DX number

Reference number

Court fee

What you need to pay

The court fee for this application is **£303**

How to pay the court fee

- ☐ I attached a **Cheque/Postal order**, made payable to 'HMCTS'
- ☐ **A debit/credit card payment**
- ☐ I will pay over the phone, please call me on the number below
- ☐ please email me details on how to pay, my email address is
- ☐ **Prepayment** – If you have already made a payment please note the reference number here
- Your reference
- | | | | | | | | | | | | | | | |
|--|--|--|--|--|--|--|--|--|--|--|--|--|--|--|
| | | | | | | | | | | | | | | |
|--|--|--|--|--|--|--|--|--|--|--|--|--|--|--|
- ☐ **In person at** the court/office
- ☐ **I have not included payment because**
- ☐ I have applied for Help with Fees online and my reference number is
- | | | | | | | | | |
|----------|----------|----------|--|--|--|--|--|--|
| H | W | F | | | | | | |
|----------|----------|----------|--|--|--|--|--|--|
- ☐ I am applying for Help with Fees, see attached form **EX160**
- ☐ Other – please explain why

What if I cannot afford to pay a court fee?

You may not have to pay a fee, or you may get some money off it if you only have a small amount of savings and investments, receive certain benefits or are on a low income. This is sometimes known as 'fee remission.'

You can apply for help with court and tribunal fees online at www.gov.uk/help-with-court-fees or through the 'EX160 Apply for help with fees' form and 'EX160A – How to apply for help with fees' guidance.

- ☐ **Payment by account** – for use by legal professionals

Your account number

P	B	A						
----------	----------	----------	--	--	--	--	--	--

Your reference (if applicable)

--	--	--	--	--	--	--	--	--	--	--	--	--	--	--

Fee account – a way for solicitors, local authorities and other regular users to make payments relating to civil and family cases.